

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Leanne Fornelli	Team: Team # 4	CCRB Case #: 201307193	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 08/07/2013 6:10 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 2/7/2015	Precinct: 40		
Date/Time CV Reported Thu, 08/08/2013 11:43 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 08/08/2013 11:43 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Jessica Alvarado	02027	937858	NARCBBX
2. SGT Daniel Guerra	00000	932755	NARCBBX
3. DT3 Robert Simms	03535	933359	NARCBBX
4. Officers			NARCBBX

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. LT Ronald Bolte	00000	918765	NARCBBX
2. CPT Vincent Carty	00000	900229	NARCBBX
3. DT3 Carlos Cruz	02505	930486	NARCBBX
4. DT3 Jeremy Natal	02523	933083	NARCBBX
5. DT3 Keith Ames	00413	929627	NARCBBX
6. DT3 John Livingston	06009	936962	NARCBBX
7. DT3 Steven Colon	06832	940993	NARCBBX
8. DT3 Jason Lopez	01260	930589	NARCBBX

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Jessica Alvarado	Abuse: Det. Jessica Alvarado entered and searched § 87(2)(b), in the Bronx.	A . Exonerated
B . Officers	Force: Officers pointed their guns at § 87(2)(b) and § 87(2)(b)	B . Exonerated
C . SGT Daniel Guerra	Abuse: Sgt. Daniel Guerra refused to show a search warrant to § 87(2)(b)	C . Unsubstantiated
D . DT3 Robert Simms	Discourtesy: Det. Robert Simms spoke discourteously to § 87(2)(b)	D . Unsubstantiated
E . DT3 Robert Simms	Abuse: Det. Robert Simms threatened to notify Administration for Children's Services.	E . Unsubstantiated
F . DT3 Jessica Alvarado	Abuse: Det. Jessica Alvarado refused to show a search warrant to § 87(2)(b)	F . Unsubstantiated

Case Summary

On August 8, 2013, § 87(2)(b) filed this complaint with the Civilian Complaint Review Board (CCRB) via telephone on behalf of herself, her daughter, § 87(2)(b) and her husband, § 87(2)(b). On August 7, 2013, at approximately 6:10 a.m., officers from Narcotics Borough Bronx enforced a search warrant at § 87(2)(b) residence, located at § 87(2)(b) in the Bronx. The following allegations resulted from this incident:

Allegation A: Abuse of Authority: Det. Jessica Alvarado entered and searched § 87(2)(b) in the Bronx.

Allegation B: Force: Officers pointed their guns at § 87(2)(b) and § 87(2)(b) § 87(2)(g)

§ 87(2)(b) it is recommended that **Allegations A and B** be closed as **Exonerated**.

Allegation C: Abuse of Authority: Sgt. Daniel Guerra refused to show a search warrant to § 87(2)(b)

Allegation D: Discourtesy: Det. Robert Simms spoke discourteously to § 87(2)(b)

Allegation E: Abuse of Authority: Det. Robert Simms threatened to notify Administration for Children's Services.

Allegation F: Abuse of Authority: Det. Jessica Alvarado refused to show a search warrant to § 87(2)(b) § 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegations C through F** be closed as **Unsubstantiated**.

Results of Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) black female who stands § 87(2)(b), and has brown hair and brown eyes. § 87(2)(b)

CCRB Testimony

On September 9, 2013, § 87(2)(b) was interviewed at the CCRB in the presence of an attorney, § 87(2)(b) (encl. 4c-4m). § 87(2)(g)

On August 7, 2013, at approximately 6:10 a.m., § 87(2)(b) was at her residence, located at § 87(2)(b) in the Bronx, with her husband, § 87(2)(b) and her two daughters, § 87(2)(b) § 87(2)(b) § 87(2)(b) and § 87(2)(b) § 87(2)(b) who also live there. § 87(2)(b) and § 87(2)(b) are the lease-holders of the apartment.

The layout of § 87(2)(b) two-bedroom apartment is as follows: Upon entering the

front door, there is a living room with a couch and a single seat. To the left of the living room is the doorway to the kitchen and straight ahead is the bathroom. To the right of the living room is a small hallway leading to § 87(2)(b) bedroom and § 87(2)(b) and § 87(2)(b) § 87(2)(b)s bedroom, which they share with § 87(2)(b)

Everyone was asleep in their bedrooms except § 87(2)(b) who slept on the couch in the living room. § 87(2)(b) was suddenly lifted up to a standing position, handcuffed and placed on the single chair next to the couch, but she had no awareness of who did this and heard no noise before this happened. Someone shouted, “Who is in the apartment? Who is in the apartment? How many people is [sic] in the apartment?”

§ 87(2)(b) saw plainclothes officers, identified via investigation as Sgt. Daniel Guerra (described as a light-skinned Hispanic or white male, 6’0” tall, slim body build, light brown spiky hair, 35 years old), Det. Jessica Alvarado (described as a light-skinned Hispanic or white female, 5’5” tall, athletic body build, 130 to 135 pounds, off-black short hair, in her early 30s), Det. Robert Simms (described as a black male, 6’1” tall, stocky body build, black hair, 35 or 36 years old), Det. Carlos Cruz, Det. Jeremy Natal, Det. Keith Ames, Det. John Livingston, Det. Steven Colon, Det. Jason Lopez and Lt. Ronald Bolte (one of whom was described as a light-skinned Hispanic or white male, 6’0” tall, stocky body build, off-black short hair, 31 or 32 years old; the rest were described only as males), all of Narcotics Borough Bronx. Det. Simms, Det. Alvarado and two of the other officers stayed with § 87(2)(b) in the living room and the rest of the officers ran to the other rooms of the apartment. An officer yelled, “I found one in the back!” § 87(2)(b) began screaming, “What are you here for? What are you looking for? Who are you?” No officer responded.

After one or two minutes, § 87(2)(b) was escorted to the living room in handcuffs (she did not recall by whom) and placed on the couch. § 87(2)(b) told § 87(2)(b) to ask the officers to see a search warrant. § 87(2)(b) said to Sgt. Guerra, who was three feet away, “Excuse me, can I see a warrant for this apartment?” Sgt. Guerra flashed a piece of unlined white paper he was holding that was folded three or four times. He said, “This is the warrant right here,” but § 87(2)(b) could not decipher any writing on the paper and Sgt. Guerra never unfolded it. § 87(2)(b) sat on the edge of her seat and said, “Can you bring the paper closer so I can see my name and my apartment on that paper?” Sgt. Guerra said, “I don’t have to show you anything,” and instructed § 87(2)(b) to “sit there and be quiet.”

§ 87(2)(b) heard an officer (who not known) say, “Did you check this room?” Det. Simms, Det. Alvarado and one other officer went to § 87(2)(b) room. § 87(2)(b) § 87(2)(b) overheard the officers tell § 87(2)(b) to get up and her saying that she had no pants on. The officers left Det. Alvarado in the room with § 87(2)(b) so she could get dressed.

Det. Simms said something to the effect of, “There’s something in here.” § 87(2)(b) § 87(2)(b) said, “There’s nothing fucking in here.” Det. Simms said to § 87(2)(b) “Just shut the fuck up.” In her phone statement, § 87(2)(b) said that Det. Simms said, “Just shut up.” § 87(2)(b) said, “You shut the fuck up.” Det. Simms said, “I’m going to call ACS.” In her phone statement, § 87(2)(b) said that one of the white male officers said this. § 87(2)(b) § 87(2)(b) said, “For what?” Det. Simms said, “You know what for. Because you know what you have in this apartment, so we’re going to take your kid from you.” Det. Simms then went into the hallway without ever re-entering. Det. Alvarado escorted § 87(2)(b) to the living room in handcuffs and placed her on the couch.

After officers searched the rooms of the apartment, most of them exited and stood in the hallway. Sgt. Guerra, Det. Alvarado and one of the other officers, PO1, asked § 87(2)(b) who lived in the apartment, and she told them. From the living room, § 87(2)(b) overheard officers in the hallway speaking about a dog coming to the apartment. A uniformed officer, identified via investigation as Cpt. Vincent Carty (described as a male, 5’8” to 5’9” tall, chubby

body build, wearing a white shirt) of Narcotics Borough Bronx, entered the apartment and asked Lt. Bolte, Det. Alvarado and PO1 what was going on. The officers said, “We’re going to get the dog.” Cpt. Carty then returned to the hallway.

After approximately one hour and fifteen minutes from when the officers arrived, a plainclothes officer, PO2 (described as a light-skinned Hispanic or white male, 5’9” tall, very muscular build, in his 40s), arrived to the apartment with a dog. At this time, § 87(2)(b) was allowed to retrieve § 87(2)(b) from her crib in the bedroom, as the dog was to go in there, and take her to the living room. In under a minute, PO1 came back to the living room and said to the officers, “There’s nothing,” and left the apartment with the dog. The handcuffs were removed from § 87(2)(b) and § 87(2)(b).

§ 87(2)(b) said, “What the fuck are you going to do about this door?” An officer § 87(2)(b) did not recall who) said that the building’s management would take care of it. § 87(2)(b) asked Sgt. Guerra, Det. Alvarado and PO1, “Excuse me, but can I see a copy of that warrant?” The officers left without acknowledging this request.

Victim: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) black male who § 87(2)(b) and has black hair and brown eyes. § 87(2)(b)

CCRB Testimony

On September 9, 2013, § 87(2)(b) was interviewed at the CCRB in the presence of an attorney, § 87(2)(b) (encl. 5a-5f). § 87(2)(g)

On August 7, 2013, at approximately 6:10 a.m., § 87(2)(b) was awoken by what he thought was § 87(2)(b) getting into bed. One of the officers, identified via investigation as Det. Lopez (described as a medium-skinned Hispanic male, 6’0” tall, athletic body build), grabbed § 87(2)(b)’s arm and a flashlight and a firearm was pointed toward his head. The firearm was pointed for approximately one minute.

Det. Lopez took § 87(2)(b) out of bed and handcuffed him. Det. Lopez escorted § 87(2)(b) to the living room. The officers in the living room included two identified via investigation as Det. Simms (described as a black male, 6’1” tall, muscular body build, bald, in his early thirties) and Det. Alvarado (described as a light to medium-skinned Hispanic female, 5’3” to 5’4” tall, short black hair, in her late 20s to early 30s).

After Det. Simms told § 87(2)(b) to “shut the fuck up,” § 87(2)(b) told him not to speak to her in that way. Det. Simms said that when they found something in the apartment, he was going to call ACS to have the kids taken away. § 87(2)(b) told Det. Simms to call ACS, and Det. Simms then went into the hallway. When § 87(2)(b) asked an officer, identified via investigation as Sgt. Guerra § 87(2)(b) did not recall any description) to see the warrant, he responded that he did not have to do that. After the search concluded, all the officers left.

Victim: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) black female who § 87(2)(b), and has brown hair and brown eyes. On the date of her interview, she was unemployed.

CCRB Testimony

On September 24, 2013, § 87(2)(b) was interviewed in the presence of an attorney, § 87(2)(b) (encl. 6b-6g). § 87(2)(g)

On August 7, 2013, at approximately 6:10 a.m., § 87(2)(b) was awoken by a loud boom, but she did not know where it came from. An officer identified via investigation as Det. Alvarado (described as a white female, 5'5" tall, thin body build, dark brown hair, 27 years old) told the other seven officers (described only as white males) to leave the room so § 87(2)(b) could get dressed. The other officers, who had their guns pointed at her for approximately five minutes, re-holstered their guns and walked out of the room. Det. Alvarado guided § 87(2)(b) to a standing position and handcuffed her. Det. Alvarado asked, "Do you know why I'm here?" § 87(2)(b) said, "No, I don't." Det. Alvarado said, "Is there anything in this room I should know about?" § 87(2)(b) said, "No."

In the living room, Det. Alvarado sat § 87(2)(b) on the couch next to § 87(2)(b) who was in the rightmost seat if facing the couch. § 87(2)(b) asked to see a warrant about four times. One of the officers, identified via investigation as Sgt. Guerra (described as a white male) responded to her once to say that she did not have to see the warrant. § 87(2)(b) received no responses to the other requests to see a warrant. When one of the officers, identified via investigation as Det. Simms (she did not recall any description) said to § 87(2)(b) "Shut the fuck up," she responded, "No, you shut the fuck up."

After the search concluded, all the officers left. § 87(2)(b) and § 87(2)(b) did not say anything to the officers as they were leaving. After the incident, § 87(2)(b) said that Det. Alvarado told her that if she was not told about what she was looking for, ACS would be called. § 87(2)(b) did not hear this conversation.

NYPD Statements:

Subject Officer: DET. JESSICA ALVARADO

- Det. Alvarado is a § 87(2)(b) Hispanic female who § 87(2)(b) and has black hair and brown eyes.
- On August 7, 2013, Det. Alvarado was on duty from 4:27 a.m. until 1:00 p.m., was assigned as the arresting officer with members of her field team, was dressed in plainclothes and using an unmarked car, number § 87(2)(b).

Memo Book

Det. Alvarado made the following notations in her memo book (encl. 11a-11c): At 5:30 a.m., Det. Alvarado was en route to § 87(2)(b) with DT Colon as a walk-on. At 6:10 a.m., a search warrant was executed at § 87(2)(b). At 7:40 a.m., Det. Alvarado resumed patrol and there were negative results on the search warrant.

CCRB Testimony

On December 17, 2013, Det. Alvarado was interviewed at the CCRB (encl. 11d-11f).

On August 7, 2013, at 6:10 a.m., Det. Alvarado arrived at § 87(2)(b). Det. Colon ensured that the doors to the building were open and the elevators were on the ground floor so the field team could get upstairs quickly.

Det. Alvarado was assigned to the search warrant for § 87(2)(b), § 87(2)(e). She entered and searched the apartment on the authority of this search warrant. Only she and the supervisors, Cpt. Carty, Sgt. Guerra and perhaps Lt. Bolte had a copy of the search warrant.

In the interview, Det. Alvarado viewed the warrant execution plan and provided the following information: Det. Lopez (Bunker 1) entered the apartment first followed by Det. Simms (Bunker 1 Security). Det. Cruz (Bunker 2) was the third officer inside, followed by Det. Natal (Bunker 2 Security). Det. Ames (Hydro) then entered, followed by Det. Alvarez (Manual Ram). Det. Colon and Det. Alvarado then entered, followed by Cpt. Carty, Lt. Bolte and Sgt. Guerra.

When Det. Alvarado entered the location, Det. Lopez, Det. Simms, Det. Cruz and Det. Natal were in the back rooms. Det. Alvarado saw § 87(2)(b) on the sofa and handcuffed her. An individual, identified via investigation as § 87(2)(b) was brought to the living room in handcuffs. Det. Alvarado was told that a young girl, identified via investigation as § 87(2)(b) was in one of the bedrooms. Det. Alvarado went into the bedroom to bring her to the living room. She told § 87(2)(b) to get dressed before she brought her out to the living room and never handcuffed her.

A search was conducted of the apartment. Det. Alvarado searched the back room for about fifteen or twenty minutes. During this time, she heard § 87(2)(b) say she wanted to see a copy of the warrant. Det. Alvarado did not hear Sgt. Guerra say, "I don't have to show you anything," or anything to this effect. An infant was in a crib in the backroom that Det. Alvarado was searching. After the room was searched, Det. Alvarado went to take the handcuffs off of § 87(2)(b) and brought her in this room so she could bring the baby to the living room.

§ 87(2)(b) told Det. Alvarado when they were in the bedroom that she wanted to see a warrant, so Det. Alvarado showed it to her. No officer ignored a request by § 87(2)(b) to see the warrant. Det. Alvarado tried to tell § 87(2)(b) that there was a warrant for the apartment for drug sales that occurred, but § 87(2)(b) did not want to talk to her.

While the officers were at the apartment, § 87(2)(b) was very irate. She was cursing and yelling that the officers had the wrong apartment, saying, "You got the wrong fucking door," and "Fuck you," statements directed towards the officers in general. No officer responded to § 87(2)(b). Det. Simms did not say, "Just shut the fuck up," or curse at § 87(2)(b). No conversation occurred about ACS. Det. Simms did not say he was going to call ACS or get ACS into the apartment.

Once the search was completed with negative results, the handcuffs were removed from everyone. After the door was secured, the officers left the apartment.

Subject Officer: SGT. DANIEL GUERRA

- Sgt. Guerra is a § 87(2)(b)-old white male who § 87(2)(b), and has brown hair and brown eyes.
- On August 7, 2013, Sgt. Guerra was on duty from 4:30 a.m. until 1:05 p.m., was assigned to Narcotics with officers from the 40 Module, was dressed in plainclothes and using an unmarked 2011 gray Dodge Caravan (he did not recall the number).

Memo Book

Sgt. Guerra made the following notations in his memo book (encl. 8a-8c): At 6:00 a.m., he executed a search warrant at § 87(2)(b). At 6:55 a.m., the search yielded negative results. He noted the names of § 87(2)(b) (DOB § 87(2)(b)) and § 87(2)(b) (DOB § 87(2)(b)).

CCRB Testimony

On November 6, 2013, Sgt. Guerra was interviewed at the CCRB (encl. 8d-8f). § 87(2)(g)

On August 7, 2013, at 6:10 a.m., Sgt. Guerra entered and searched the apartment on the authority of a search warrant assigned to Det. Alvarado. Sgt. Guerra was the last officer to enter the apartment. Upon entry, § 87(2)(b) and § 87(2)(b) were sitting on a couch in the living room. § 87(2)(b) seemed to be intoxicated, as she had four to five King Cobra beers around her and she smelled of alcohol.

Sgt. Guerra did not recall § 87(2)(b) presence at the incident location. In his interview, he viewed a photograph of her, but did not recognize her. He did not speak to § 87(2)(b) or § 87(2)(b) but went to the back bedroom, which he searched for narcotics with Det.

Colon and where an infant was present. During this time, he heard § 87(2)(b) ask to see the warrant two times and seemed to be directing this question at the officers in general. § 87(2)(b) continued to ask to see the warrant, but Sgt. Guerra did not know how many more times she asked. Sgt. Guerra did not know why she had to ask more than once to see the warrant and he heard no officer respond to her. Sgt. Guerra returned to the living room after having been in the back bedroom for ten to fifteen minutes.

When Sgt. Guerra entered the living room, Lt. Bolte, who had a copy of the warrant on his person and was about two feet away from § 87(2)(b) unfolded it and showed it to her to prove the officers had permission and authority to enter the apartment. Lt. Bolte explained to § 87(2)(b) that the warrant was the reason the officers were there. § 87(2)(b) did not seem satisfied, as she was irate that the officers were there, but seemed to be able to clearly view the warrant. Sgt. Guerra did not say, “I don’t have to show you anything,” or anything similar to this. Neither Sgt. Guerra nor any other officer ignored a request to see the warrant.

Sgt. Guerra was sure that § 87(2)(b) cursed at the officers, but he did not recall what she said or what was said in return. No officer cursed at any of the civilians. Det. Simms did not say to § 87(2)(b) “Shut the fuck up,” or anything similar. Sgt. Guerra was not aware of any conversation in regard to ACS taking place. He did not hear Det. Simms mention ACS or say that he was going to call ACS or get ACS in the apartment.

After the search was concluded, Sgt. Guerra instructed an officer (he did not recall who) to take the handcuffs off of § 87(2)(b) and § 87(2)(b) and the officer did so. Sgt. Guerra left with the rest of the officers.

Subject Officer: DET. ROBERT SIMMS

- *Det. Simms is a § 87(2)(b) -old black male who § 87(2)(b), and is bald with brown eyes.*
- *On August 7, 2013, Det. Simms was on duty from 4:27 a.m. until 1:00 p.m., was assigned to Bunker Security with Det. Lopez, was dressed in plainclothes but wearing NYPD gear, and was assigned to an unmarked black Camry, number § 87(2)(b).*

Memo Book

Det. Simms made the following notations in his memo book (encl. 9a-9c): At 5:15 a.m., a TAC meeting was held and Det. Simms was assigned to Bunker Security for a search warrant to be executed at § 87(2)(b). At 5:30 a.m., Det. Simms was en route to the 40th Precinct for the search warrant in vehicle number 2258. At 6:05 a.m., Det. Simms was at the TAC location, § 87(2)(b) Street and § 87(2)(b). At 6:10 a.m., the search warrant was executed at § 87(2)(b). At 7:40 a.m., Det. Simms left the location.

CCRB Testimony

On November 19, 2013, Det. Simms was interviewed at the CCRB (encl. 9d-9f). § 87(2)(g)

On August 7, 2013, at approximately 6:10 a.m., Det. Simms entered the location of § 87(2)(b) in the Bronx, on the authority of a search warrant assigned to Det. Alvarado. Det. Simms did not know who had a copy of the search warrant for this incident, but said the officer assigned to the warrant and a supervisor usually have copies.

Det. Simms did not recall how many people were inside the apartment that needed to be secured. He left the apartment as soon as he secured the location, and probably waited outside the apartment, but did not know for sure. He was not present while the apartment was being searched. He did not recall how long he was inside the apartment before he waited outside.

Det. Simms did not recall any interaction he had with any civilians inside. In the interview, he viewed a photograph of § 87(2)(b) and recognized her, but did not interact

with her and did not recall where she was in the apartment. He also viewed photographs of § 87(2)(b) and § 87(2)(b) but did not recognize them.

Det. Simms recalled no conversation about the search warrant. Sgt. Guerra never said, in response to a request to see a search warrant, “I don’t have to show you anything.” No officer ignored a request to see a search warrant. Det. Simms did not say, “Just shut the fuck up,” or anything similar to § 87(2)(b). He did not recall the presence of an infant at the location and no conversation occurred about ACS. He did not mention ACS or say he was going to call ACS or get ACS into the apartment.

Witness Officer: DET. CARLOS CRUZ

- Det. Cruz is a § 87(2)(b)-old Hispanic male who § 87(2)(b) and has black hair and hazel eyes.
- On August 7, 2013, Det. Cruz was on duty from 4:27 a.m. until 1:00 p.m., was assigned to a search warrant with Det. Alvarado, Det. Lopez, Det. Simms, Det. Natal, Sgt. Guerra and Lt. Bolte, was dressed in plainclothes, and using an unmarked black Toyota Camry (number unknown).

Memo Book

Det. Cruz made the following notations in his memo book (encl. 10a-10c): At 6:05 a.m., a search warrant was executed at § 87(2)(b).

CCRB Testimony

On November 22, 2013, Det. Cruz was interviewed at the CCRB (encl. 10d-10f). § 87(2)(g).

On August 7, 2013, at 6:10 a.m., Det. Cruz entered the apartment on the authority of the search warrant that was assigned to Det. Alvarado, who had a copy of the warrant along with Lt. Guerra. Det. Cruz was the third officer to enter and he observed couches on the right hand side in a living room and more rooms to the left. No one was on the couches.

Officers identified via investigation as Det. Lopez and Det. Simms turned left, and Det. Cruz followed them. Det. Cruz went into the bathroom, which was empty of civilians. He then returned to the living room because the only bedroom in the apartment was cleared by Det. Lopez and Det. Simms. § 87(2)(b) and § 87(2)(b) were handcuffed in the living room. A baby was in the bedroom of the apartment, where she stayed throughout the incident.

Det. Cruz did not overhear a conversation about the warrant. § 87(2)(b) said, “Why [are] you here?” An officer, Det. Cruz did not know who, said, “Search warrant.” § 87(2)(b) did not bring up the warrant again to Det. Cruz, in front of him or within his earshot. Sgt. Guerra did not say in response to a request to see the search warrant, “I don’t have to show you anything,” or anything similar. No officer ignored a request to see the search warrant. No officer showed the search warrant to a civilian in front of Det. Cruz, who was standing in the living room the entire time watching over the civilians. In the interview, Det. Cruz mentioned that he was not entirely aware of what the other officers were doing because he was focused on the civilians.

Det. Cruz did not hear Det. Simms say to § 87(2)(b) “Just shut the fuck up,” or use any profanity with her. No conversation occurred about ACS. Det. Simms did not mention ACS in any way or say he was going to call ACS or get ACS into the apartment. After the search concluded, the officers left the apartment and the supervisors exited last.

Witness Officer: LT. RONALD BOLTE

- Lt. Bolte is a § 87(2)(b)-old white male who § 87(2)(b), and has brown hair and blue eyes.
- On August 7, 2013, Lt. Bolte was on duty from 5:00 a.m. until 1:45 p.m. as a supervisor of Narcotics Borough Bronx, was working with members of the 40 module, was dressed in plainclothes, and using an unmarked black Ford Fusion, number § 87(2)(e), § 87(2)(b).

Memo Book

Lt. Bolte made the following entries in his memo book (encl. 7a-7c): At 5:15 a.m., a TAC meeting was held with the 40 Module in regard to § 87(2)(b) Cpt. Carty and Det. Livingston were present in his vehicle. At 6:05 a.m., an entry was made into § 87(2)(b) At 6:20 a.m., Lt. Bolte was en route to the next search warrant location.

CCRB Testimony

On October 10, 2013, Lt. Bolte was interviewed at the CCRB (encl. 7d-7e).

On August 7, 2013, at 6:10 a.m., Lt. Bolte enforced a search warrant for § 87(2)(b) assigned to Det. Alvarado. He did not recall when he entered in relation to the other officers or where he went inside the apartment. He ensured that all occupants were handcuffed for safety reasons, but he did not recall how many there were. He did not handcuff anyone personally, but only stood inside the apartment to ensure no one was injured. He reviewed the photographs of § 87(2)(b) and § 87(2)(b) but did not recognize them. Lt. Bolte did not recall an infant being present. He did not recall where the prisoners were placed once they were secured.

Only the supervisors on the scene, which included himself, Sgt. Guerra and Cpt. Carty, had copies of the warrant. Lt. Bolte did not have any verbal interaction with any of the civilians. He did not recall any civilian asking any other officer to see a copy of the warrant. Sgt. Guerra did not tell any civilian that he did not have to show them a copy of the warrant. No officer ignored a request to see the search warrant. Lt. Bolte did not hear Det. Simms tell § 87(2)(b) to “shut the fuck up.” Lt. Bolte recalled no conversation about ACS and did not hear Det. Simms mention ACS.

After a maximum of fifteen minutes, Lt. Bolte left to execute the next search warrant. Lt. Bolte was only inside the apartment for five minutes and spent the rest of the time bringing equipment downstairs and preparing to leave.

NYPD Documents

Search Warrant

Search Warrant § 87(2)(b) (encl. 12a-12c) commanded officers to search § 87(2)(b) in the Bronx, for drugs or evidence of drugs and the person of § 87(2)(b) within ten days of § 87(2)(b) Hon. § 87(2)(b) signed this warrant, which was assigned to Det. Alvarado.

Search Warrant Plan; Pre-Execution

The search warrant plan for case number § 87(2)(b) (encl. 12d), a search warrant obtained by Det. Alvarado, listed her, Det. Lopez, Det. Simms, Det. Cruz, Det. Natal, Det. Ames, Det. Livingston and Det. Colon as the assigned officers. Cpt. Carty, Lt. Bolte and Sgt. Guerra were the supervisors assigned to this case.

Status of Civil Proceedings

§ 87(2)(b) and § 87(2)(b) filed a Notice of Claim (encl. 13a-13e) with the City of New York on § 87(2)(b), claiming psychological injuries, money

damages and punitive damages. The amount sought as redress was not included. As of December 11, 2013, no 50-H hearings had been scheduled.

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilians CCRB History

This is the first CCRB complaint filed by § 87(2)(b) and involving § 87(2)(b) and § 87(2)(b) (encl. 2a-2c).

Subject Officers CCRB History

- Det. Alvarado has been a member of the service for 8 years and there are no substantiated CCRB allegations against her (encl. 1a).
- Sgt. Guerra has been a member of the service for 10 years and there is 1 substantiated CCRB allegation against him in CCRB 200506274 for abuse of authority (other), for which the Board recommended charges and the NYPD imposed instructions (encl. 1b).
- Det. Simms has been a member of the service for 10 years and there are the following CCRB allegations against him (encl. 1c-1d):
 - In CCRB 200307474, the Board recommended charges for a question and/or stop and a retaliatory summons (both abuse of authority) and the NYPD disposition for both allegations was not guilty.
 - In CCRB 200816660, the Board recommended charges for a search of person (abuse of authority) and the NYPD imposed instructions.
 - In CCRB 201012621, the Board recommended charges for a stop (abuse of authority) and the NYPD imposed instructions.

Conclusion

Identification of Subject Officers

- § 87(2)(g)
- § 87(2)(b) described the officer who pointed his gun at him as a Hispanic male. Det. Cruz said that Det. Lopez and Det. Simms cleared the back bedroom. § 87(2)(g) however, could only describe the seven officers who had their guns pointed at her as white males, § 87(2)(g)
- § 87(2)(b) said that the plainclothes officer (described as a light-skinned Hispanic or white male) who refused to unfold the warrant and show it to her left the location after the search concluded. According to Det. Alvarado and Lt. Bolte, they along with Cpt. Carty and Sgt. Guerra had copies of the warrant. According to their memo books, Lt. Bolte left twenty minutes after the entry and Sgt. Guerra left after the search concluded. According to § 87(2)(b) Cpt. Carty, who was dressed in uniform and wearing a white shirt, briefly entered the apartment before all the officers left. § 87(2)(g)

- § 87(2)(b) and § 87(2)(b) described the officer who spoke discourteously to § 87(2)(b) and threatened to notify ACS as a black male. § 87(2)(g)

Investigative Findings and Recommendations

Allegation A: Abuse of Authority: Det. Jessica Alvarado entered and searched § 87(2)(b), in the Bronx.

It is undisputed that officers from Narcotics Borough Bronx entered and searched the apartment. The investigation determined that upon Det. Alvarado's request, a search warrant was granted by Hon. § 87(2)(b) of the Criminal Court of the City of New York, which commanded an entry and search of the residence for drugs, evidence of drugs and an individual named as "§ 87(2)(e)

§ 87(2)(g)

it is recommended that **Allegation A** be closed as **Exonerated**.

Allegation B: Force: Officers pointed their guns at § 87(2)(b) and § 87(2)(b)

§ 87(2)(b) alleged that when Det. Lopez entered his room, he pointed his gun toward § 87(2)(b)'s head. § 87(2)(b) alleged that seven officers entered her room and pointed their guns at her.

In Police Department v. Gliner, OATH Index No. 955/00 (encl. 0a-0s), the court found that officers have broad discretion to display their weapons whenever they feel that their own or another's life is in danger.

§ 87(2)(g)

It is therefore recommended that **Allegation B** be closed as **Exonerated**.

Allegation C: Abuse of Authority: Sgt. Daniel Guerra refused to show a search warrant to § 87(2)(b)

§ 87(2)(b) alleged that when she asked Sgt. Guerra to unfold the search warrant and show it to her, he said, "I don't have to show you anything." She said that when she asked him, Det. Alvarado and another plainclothes officer to see the search warrant as they were leaving, Sgt. Guerra ignored her. § 87(2)(b) said that when § 87(2)(b) asked Sgt. Guerra to see the search warrant, he said he did not have to do that. § 87(2)(b) did not allege that Sgt. Guerra ignored a request by § 87(2)(b) to see the search warrant as he was leaving. § 87(2)(b) said that § 87(2)(b) asked about four times to see a search warrant and was ignored except for one time, when Sgt. Guerra said she did not have to see the search warrant. § 87(2)(b) did not allege that Sgt. Guerra ignored a request by § 87(2)(b) to see the search warrant as he was leaving, and said that no one spoke to the officers as they were leaving.

Sgt. Guerra said that in the living room, Lt. Bolte unfolded the search warrant and showed it to § 87(2)(b) who seemed to have no problem viewing it although she remained irate. Sgt. Guerra denied telling § 87(2)(b) that he did not have to show her the search warrant or ignoring any request made by her to see the search warrant. Det. Alvarado, Det. Simms, Det. Cruz and Lt. Bolte denied hearing Sgt. Guerra say this to § 87(2)(b) and said they did not witness any officer ignore a request to see the search warrant.

§ 87(2)(g)

It is therefore recommended that **Allegation C** be closed as **Unsubstantiated**.

Allegation D: Discourtesy: Det. Robert Simms spoke discourteously to § 87(2)(b)

§ 87(2)(b) alleged that Det. Simms said to her, “Just shut the fuck up,” after she stated aloud that nothing was inside the apartment. § 87(2)(b) and § 87(2)(b) corroborated § 87(2)(b) testimony in regard to this.

Det. Simms denied saying, “Just shut the fuck up,” or anything similar to § 87(2)(b)

Det. Alvarado, Sgt. Guerra, Det. Cruz and Lt. Bolte denied hearing Det. Simms say this.

§ 87(2)(g)

It is therefore recommended that **Allegation D** be closed as **Unsubstantiated**.

Allegation E: Abuse of Authority: Det. Robert Simms threatened to notify Administration for Children's Services.

§ 87(2)(b) and § 87(2)(b) alleged that during the search of the apartment, Det. Simms said he was going to call ACS once they found drugs. § 87(2)(b) did not make this allegation, but said that after the incident, § 87(2)(b) informed her that Det. Alvarado threatened to call ACS, which § 87(2)(b) did not witness.

Det. Simms denied threatening to call or making any mention of ACS. Det. Alvarado, Sgt. Guerra, Det. Cruz and Lt. Bolte denied hearing Det. Simms threaten to notify or make any mention of ACS.

§ 87(2)(g)

It is therefore recommended that **Allegation E** be closed as **Unsubstantiated**.

Allegation F: Abuse of Authority: Det. Jessica Alvarado refused to show a search warrant to § 87(2)(b)

§ 87(2)(b) alleged that as Det. Alvarado, Sgt. Guerra and a third plainclothes officer were leaving the apartment, she asked to see the search warrant. Neither § 87(2)(b) nor § 87(2)(b) made this allegation, and § 87(2)(b) said that no one spoke to the officers as they were leaving.

Det. Alvarado said that during the search of the apartment, § 87(2)(b) asked her to see the search warrant and she showed it to her. She denied ignoring a request by § 87(2)(b) to see the search warrant. Sgt. Guerra, Det. Simms and Det. Cruz said they did not witness any officer ignore a request to see the search warrant. Lt. Bolte left twenty minutes after the entry and was not present for this part of the incident.

§ 87(2)(g)

It is therefore recommended that **Allegation F** be closed as **Unsubstantiated**.

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date